



Artiom Kovnatsky <skovnats@gmail.com>

Subject: Evidence-preservation notice / litigation hold — account 'skovnats@gmail.com' (pre-emptive SPAM flag, early April 2026)

7 messages

Artiom Kovnatsky <skovnats@gmail.com>

Thu, Jun 25, 2026 at 11:10 PM

To: Blaine Support <support@osf.io>

Cc: Blaine Support <support@osf.io>, contact@cos.io

Dear OSF / Center for Open Science Team,

I am the holder of the OSF account skovnats@gmail.com, which was deactivated and flagged as „SPAM“ in early April 2026, before any file, project, registration or preprint was uploaded. I refer to my Art. 15 GDPR / Art. 17 DSA request of 27 May 2026 and to support ticket(s) including the form I submitted on 10 April 2026.

I am assessing legal proceedings in connection with that action. I therefore formally request that you preserve, and refrain from deleting, altering, anonymising, or overwriting, all records relating to my account and to the flagging decision, in particular:

- (a) all access and registration records (incl. email, ORCID 0009-0002-4357-4498) with timestamps;
- (b) all automated filter/classifier outputs, scores, thresholds, category labels and rule identifiers applied, with the exact UTC start and end timestamps of the deactivation;
- (c) any IP/CIDR-neighbourhood, email-address or external-identifier reputation signal consulted, including source and value returned;
- (d) all human-review records;
- (e) all internal tickets, notes and communications relating to the flag and to my 10 April 2026 form;
- (f) the statement of reasons under Art. 17 DSA and its Transparency-Database identifier (PUID).
- + Other relevant data/metadata not mentioned.

Legal basis: the records are relevant to contemplated proceedings; under German civil procedure, destruction of evidence whose relevance has been notified (Beweisvereitelung) permits adverse inferences and may reverse the burden of proof. I also invoke Art. 18 GDPR (restriction of processing) so that these records are retained and not erased pending resolution.

Please confirm in writing within 14 days that these records are preserved. This is without prejudice to my pending Art. 15 GDPR / Art. 17 DSA request and all further rights.

Yours sincerely,

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Regards | MfG

Dr. Artiom A. Kovnatsky

www.artiomkovnatsky.com | Founder [S.V.E.](https://zenodo.org/communities/sve) | <https://zenodo.org/communities/sve>

On Sat, Apr 18, 2026 at 1:10 PM Artiom Kovnatsky <skovnats@gmail.com> wrote:

?

Thnx.

KR

AK.

On Fri, Apr 10, 2026 at 5:52 PM Artiom Kovnatsky <skovnats@gmail.com> wrote:

Dear OSF Support Team,

Thank you for your response. As instructed, I have completed the **"Account Disabled or Falsely Flagged as SPAM"** reporting form. Please find the screenshots of the submitted form attached to this email for your records.

Regarding this case, I require clarification on the following points to understand the nature of this "anomaly" in the context of my professional and scientific work:

1. **Pre-emptive Flagging:** My account was deactivated before a single file, project, or preprint was uploaded. On what technical or behavioral grounds was a clean account flagged as "SPAM" prior to any platform interaction?
2. **Origin of Action:** Was this deactivation triggered by an automated heuristic (algorithmic) or was it a manual intervention by a moderator?
3. **Procedural Delay:** Your initial automated response promised a resolution within 48–72 hours. Why did it take **over 38 days** and a second reminder to receive this follow-up?
4. **Institutional Standing:** Please note that this account represents a registered German business entity (**Wirtschafts-ID: DE405667512**). Treating a verified scientific and commercial ID as "SPAM" without cause or communication constitutes a significant disruption to my professional activities.

Under **GDPR (DSGVO) Article 15**, I also reserve the right to request access to the specific data and logic used to make this automated decision regarding my account status.

I look forward to your response within the stated 48–72 hour window.

Best regards,

Dr. Artiom Kovnatsky

*Independent Researcher | Systems Architect Wirtschafts-ID: DE405667512
(Berlin, Germany)*

The first screenshot shows the top portion of the Google Form. It includes a title, an explanatory paragraph about OSF's spam filters, and a 'Switch account' link. Below this are three input fields: 'Your name' (filled with 'Dr. Artiom Kovnatsky'), 'What is your ORCID' (filled with '0009-0002-4357-4498'), and 'Are you able to log in to your account?' (with 'No' selected). A 'URL link to your flagged or deactivated material' field is also present, with a note about account-level deactivation.

The second screenshot shows the bottom portion of the form. It continues with the 'URL link' field, followed by 'Your email address' (filled with 'artiomkovnatsky@pm.me'). The main body of the form is a text area containing a 5-sentence summary of the researcher's work. The summary describes research in Systemic Verification Engineering (S.V.E.), VKB-Training, and the researcher's role as an independent researcher at OSF. The form concludes with 'Submit' and 'Clear form' buttons, a disclaimer about Google Forms, and a footer with the Google Forms logo.

On Fri, Apr 10, 2026 at 3:46 PM Blaine Support <support@osf.io> wrote:

Hello,

Thank you for reaching out to the OSF support team! We investigate reported cases of OSF users being accidentally flagged or deactivated on a case-by-case base. If you have an account or material that has been flagged as SPAM or deactivated please report your case here: [Account Disabled or Falsely Flagged as SPAM reporting](#). Cases are reviewed within 48 to 72 hours.

Thank you,

How would you rate my reply?

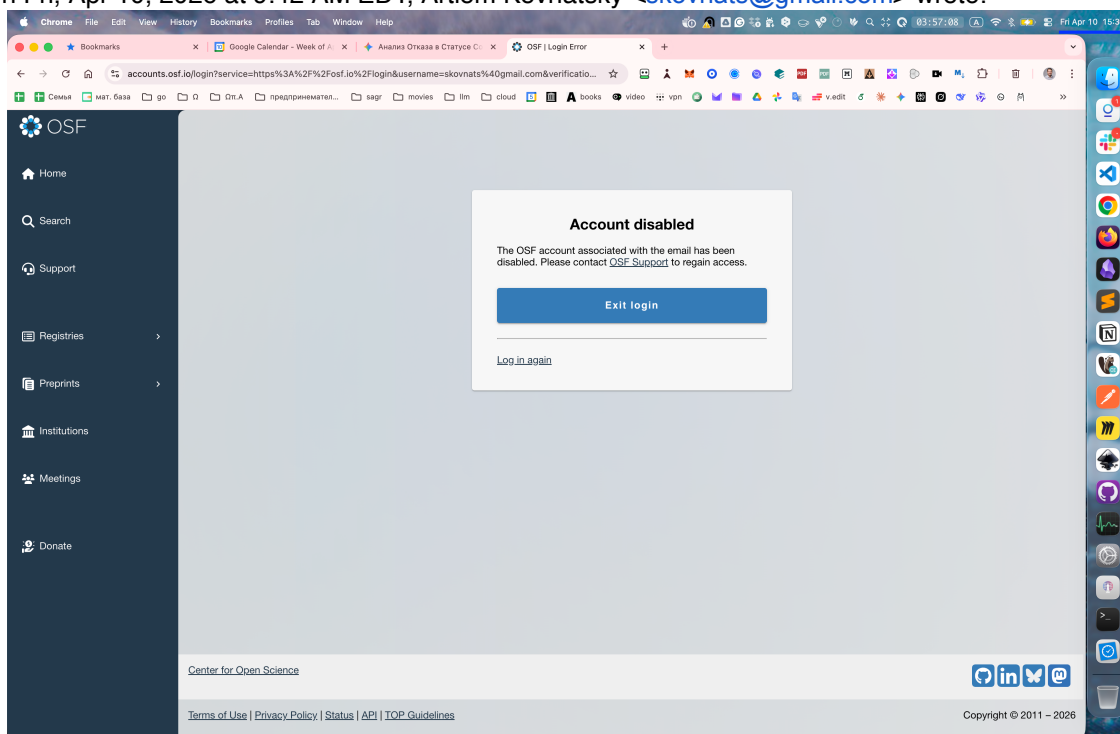
Great Okay Not Good

--

Blaine

support@osf.io

On Fri, Apr 10, 2026 at 9:42 AM EDT, Artiom Kovnatsky <skovnats@gmail.com> wrote:



Hello,

Could you please unblock the account?

btw, what is the reason for blocking? I have not put anything to the OSF platform yet or?

Thnx!

Artiom Kovnatsky

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Regards,

Artiom Kovnatsky

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Regards,

Artiom Kovnatsky

OSF Support <support@osf.io>
To: Artiom Kovnatsky <skovnats@gmail.com>

Thu, Jun 25, 2026 at 11:11 PM

Hello Artiom,

Thank you for contacting OSF support. We aim to respond to emails in 48-72 hours.

If you would like to provide feedback on the new user interface please use this [FORM](#).

To limit the time required to resolve your issue, please provide as much information as possible including:

- *a URL for the project/registration you are having issues with
- *screenshots of the issue
- * your OSF user ID and the ID of your project/registration/preprint
- * the date/time you saw the issue
- * the browser and version you're running
- * any error messages

You can also browse our Guides (<https://help.osf.io/>) to see if your question has already been answered. You can check the status of our services at <http://status.cos.io> and subscribe to updates. To add additional comments, reply to this email.

Support Manager <support@osf.io>
To: Artiom Kovnatsky <skovnats@gmail.com>
Cc: contact@cos.io

Thu, Jun 25, 2026 at 11:34 PM

Hello, Artiom.

I believe there may have been some confusion with multiple accounts under your name:

<https://osf.io/mq69j/>

<https://osf.io/gsjaf/>

You should be able to access both of these, though the preference would be to merge them to prevent similar issues in the future. I have also safelisted some domains referenced, which spam filters are likely to pick up on.

These are [instructions for merging your accounts](#), or I can merge them for you. I just need to know which of the two you would want to have as the primary, and the other account will forward to it.

How would you rate my reply?

Great Okay Not Good

--
Support
support@osf.io

[Quoted text hidden]

Artiom Kovnatsky <skovnats@gmail.com>
To: Support Manager <support@osf.io>

Fri, Jun 26, 2026 at 11:44 AM

Hello,

Thank you for clearing the restriction and safelisting the domains. Please merge the accounts, keeping skovnats@gmail.com as the primary one.

Please note that a formal, comprehensive GDPR (Art. 15) and DSA (Art. 17) request has been compiled and is being served to your privacy and legal teams to fully clarify the technical grounds, logs, and human-review trails of this pre-emptive restriction.

Regards,

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Regards | MfG

Dr. Artiom A. Kovnatsky

www.artiomkovnatsky.com | Founder S.V.E. | <https://zenodo.org/communities/sve>

[Quoted text hidden]

Support Manager <support@osf.io>
To: Artiom Kovnatsky <skovnats@gmail.com>

Fri, Jun 26, 2026 at 12:35 PM

Ok, you should be able to login now to [this account](#) with the gmail address.

How would you rate my reply?

[Great](#) [Okay](#) [Not Good](#)

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Support

support@osf.io

On Fri, Jun 26, 2026 at 5:45 AM EDT, Artiom Kovnatsky <skovnats@gmail.com> wrote:

Hello,

Thank you for clearing the restriction and safelisting the domains. Please merge the accounts, keeping skovnats@gmail.com as the primary one.

Please note that a formal, comprehensive GDPR (Art. 15) and DSA (Art. 17) request has been compiled and is being served to your privacy and legal teams to fully clarify the technical grounds, logs, and human-review trails of this pre-emptive restriction.

Regards,

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Regards | MfG

Dr. Artiom A. Kovnatsky

www.artiomkovnatsky.com | Founder S.V.E. | <https://zenodo.org/communities/sve>

On Fri, Jun 26, 2026 at 5:11 AM EDT, Artiom Kovnatsky <skovnats@gmail.com> wrote:

Berlin, 25 June 2026 Center for Open Science, Inc., 6218 Georgia Avenue NW, Suite #1, Unit 3189, Washington, DC 20011, USA

Dear OSF / Center for Open Science Privacy Team,

I am the data subject and account holder skovnats@gmail.com (ORCID 0009-0002-4357-4498). The substantive subject-matter of this request is the pre-emptive deactivation of my OSF account in early April 2026, which occurred prior to any upload of any file, project, registration, or preprint by me to the platform, and which was characterised as a "SPAM" determination.

Article 27 GDPR - representative in the Union. Please identify your designated representative in the Union (name and contact address). If no such representative has been designated, please confirm this expressly. The absence of a designated Article 27 representative would itself constitute an infringement of the GDPR, which I reserve the right to raise with the Berliner Beauftragte für Datenschutz und Informationsfreiheit (BlnBDI).

Part A - Request under Article 15 GDPR Pursuant to Article 15(1) GDPR, I request access to my personal data and the following information:

- The purposes of processing and categories of personal data concerned, including access logs, moderation records, all signals/scores applied, and third-party reputation signals consulted in respect of my account/IP.
- Legal basis - identity of recipients. I rely on Art. 15(1)(c) GDPR as interpreted by the Court of Justice of the European Union in Case C-154/21, RW v Österreichische Post AG (judgment of 12 January 2023): the data subject is entitled, upon request, to the actual identity of the recipients of their personal data, not merely the categories of recipients. I therefore request the specific identities.
- Where the personal data are not collected from me directly, any available information as to their source (Article 15(1)(g) GDPR).
- Meaningful information about the logic involved in automated decision-making (Article 15(1)(h) and 22(3) GDPR), particularly regarding any IP-address/CIDR, email-address, or external-identifier reputation signal applied.

Part B - Request under Article 17 DSA The deactivation of my account constitutes a suspension of the provision of the service (Article 17(1)(b) DSA). I request a written statement of reasons containing facts relied upon, information on automated means, legal grounds, and the PUID. The reinstatement of my account does not discharge your obligation to provide a statement of reasons under Art. 17(3) DSA, nor to answer my Art. 15 GDPR request within Art. 12(3) GDPR; I renew both.

I hereby formally submit a complaint under Article 20 DSA against the deactivation.

Specific items requested

- (a) The internal record of actions applied to the account in March–April 2026, with timestamps (UTC).
- (b) The identity, version, and operating description of any filters, heuristics, or rules whose output contributed to the action.
- (c) Any IP-address or CIDR-neighbourhood reputation signal consulted, including source and value.
- (d) Any email-address reputation signal consulted.
-

(e) Records of human review that preceded the deactivation and any subsequent review.

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(f) The complete record of my form submission of 10 April 2026 and internal notes.

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(g) The Statement of Reasons under Article 17 DSA and its PUID.

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(h) The complete output of the anti-abuse / spam classifier(s) applied, including: (i) the specific category label, the severity/risk score, and the probability or score threshold triggered. As my OSF account held no uploaded content at the time of the flag, items (h)-(j) apply to the account/identifier/IP signal(s) that triggered the flag and to the human-review and procedure records; the commit/file, fork, and download items are inapplicable.

•

(i) The human-review log and system audit trail.

•

(j) Standard procedure and benchmarks for automated abuse/spam detections of this category.

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(k) Third-party, governmental, and law-enforcement involvement (Art. 15(1)(c) and (g) GDPR; Art. 16 DSA). Please confirm whether the action was triggered by, contributed to by, or accompanied by any communication from a third party. If so, provide the timestamp, identity, legal basis, and specific processing requested.

•

(o) Data Protection Impact Assessment (Art. 35 GDPR). Please provide the non-confidential summary or relevant excerpts of the Data Protection Impact Assessment (DPIA) conducted for the automated abuse-detection, spam-filtering, and account-flagging systems applied to my account. I specifically request the findings concerning the assessed risks, error rates, and mitigation measures regarding false-positive restrictions.

(p) Data Portability (Art. 20 GDPR). Please provide a machine-readable export (e.g., in JSON or XML format) of the exact state of my account metadata-and, where applicable, repository metadata-during the exact period the restriction was active. This export must include all internal database flags, visibility states, system tags, and moderation labels assigned to the account at that time.

(q) Systemic Error Rates and Proportionality (Art. 15 and 23 DSA). To enable an assessment of the proportionality and diligence of the automated measures applied, please provide the specific statistical error rate (false-positive rate) of the exact classifier, filter, or rule version that triggered the restriction on my account, as evaluated in your most recent quality assurance, algorithm training, or systemic risk assessments.

Please provide the response in a commonly used electronic form within one month of receipt.

P.S.Rule of Interpretation in the Spirit of the Law [for all documents-requests]

Should any technical or legal terms used in the enclosed requests allow for multiple interpretations, I demand that you strictly apply the interpretation that most fully satisfies the spirit of the law (IFG, DSA, GDPR), the principle of

transparency, and the maximum protection of human rights. Any deliberate exploitation of definitional gaps to withhold data will be treated as bad-faith obstruction of the truth.

Yours sincerely,

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Regards | MfG

Dr. Artiom A. Kovnatsky

www.artiomkovnatsky.com | Founder S.V.E. | <https://zenodo.org/communities/sve>

On Thu, Jun 25, 2026 at 5:33 PM EDT, Support Manager <support@osf.io> wrote:

Hello, Artiom.

I believe there may have been some confusion with multiple accounts under your name:

<https://osf.io/mq69j/>

<https://osf.io/gsjaf/>

You should be able to access both of these, though the preference would be to merge them to prevent similar issues in the future. I have also safelisted some domains referenced, which spam filters are likely to pick up on.

These are [instructions for merging your accounts](#), or I can merge them for you. I just need to know which of the two you would want to have as the primary, and the other account will forward to it.

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Support

support@osf.io

[Quoted text hidden]

Artiom Kovnatsky <skovnats@gmail.com>

Fri, Jun 26, 2026 at 1:09 PM

To: Support Manager <support@osf.io>

Subject: RE: IMPORTANT: Official Legal Notice of Non-Compliance & Statutory Clock [Support Ticket #3367589397-1745541]

To: OSF Support / Center for Open Science (COS) Legal Operations

This is an official legal attestation and a formal record of non-compliance.

1. **Irrelevance of Account Access:** Your response stating "you should be able to login now" is legally irrelevant to the substantive matter. The fact that account access has been restored does not absolve OSF from its statutory obligations regarding past data processing and pre-emptive restrictions.
2. **Refusal of Compliance:** Ignoring the formal GDPR Article 15 (Data Subject Access Request) and DSA Article 17 (Statement of Reasons Request) explicitly served in the preceding communication constitutes an immediate compliance failure and an attempt to evade European statutory law.
3. **The Clock is Running:** Be advised that the mandatory statutory countdowns for the disclosure of all logs, human-review trails, classifier outputs, and technical grounds regarding the restriction **have officially commenced** as of June 26, 2026.
4. **Evidentiary Preservation:** This attempt to bypass regulatory requests via a

standard support script has been documented, timestamped, and preserved. It will be submitted directly to the relevant European Data Protection Authorities and the upcoming judicial proceedings in September 2026 as explicit evidence of structural non-compliance.

OSF Legal Operations is advised to pull this thread manually immediately and route it to your Data Protection Officer (DPO).

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Regards | MfG

Dr. Artiom A. Kovnatsky

www.artiomkovnatsky.com | Founder S.V.E. | <https://zenodo.org/communities/sve>

4 of 1,859

Data Subject Access Request (GDPR Art. 15) and Statement of Reasons Request (DSA Art. 17) — Account 'skovnats' (deactivated as "SPAM" pre-emptively, April 2026)

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Artiom Kovnatsky <skovnats@gmail.com>
to Blaine, contact ▾

11:11 AM (1 hour ago) ★ 📧 ↶ ⋮

Berlin, 25 June 2026 Center for Open Science, Inc., 6218 Georgia Avenue NW, Suite #1, Unit 3189, Washington, DC 20011, USA

Dear OSF / Center for Open Science Privacy Team,

I am the data subject and account holder skovnats@gmail.com (ORCID 0009-0002-4357-4498). The substantive subject-matter of this request is the pre-emptive deactivation of my OSF account in early April 2026, which occurred prior to any upload of any file, project, registration, or preprint by me to the platform, and which was characterised as a "SPAM" determination.

Article 27 GDPR — representative in the Union. Please identify your designated representative in the Union (name and contact address). If no such representative has been designated, please confirm this expressly. The absence of a designated Article 27 representative would itself constitute an infringement of the GDPR, which I reserve the right to raise with the Berliner Beauftragte für Datenschutz und Informationsfreiheit (BlnBDI).

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- Legal basis — identity of recipients. I rely on Art. 15(1)(c) GDPR as interpreted by the Court of Justice of the European Union in Case C-154/21, RW v Österreichische Post AG (judgment of 12 January 2023): the data subject is entitled, upon request, to the actual identity of the recipients of their personal data, not merely the categories of recipients. I therefore request the specific identities.
- Where the personal data are not collected from me directly, any available information as to their source (Article 15(1)(g) GDPR).
- Meaningful information about the logic involved in automated decision-making (Article 15(1)(h) and 22(3) GDPR), particularly regarding any IP-address/CIDR, email-address, or external-identifier reputation signal applied.

Part B — Request under Article 17 DSA The deactivation of my account constitutes a suspension of the provision of the service (Article 17(1)(b) DSA). I request a written statement of reasons containing facts relied upon, information on automated means, legal grounds, and the PUID. The

↶ Reply

↶ Reply all

↷ Forward

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Support Manager <support@osf.io>
To: Artiom Kovnatsky <skovnats@gmail.com>

Fri, Jun 26, 2026 at 6:25 PM

Artiom,

We acknowledge receipt of your correspondence asserting requests under GDPR and the Digital Services Act. Your support issue regarding account access has been addressed separately. We are routing your legal/privacy request to the appropriate personnel for review. We will evaluate the request and respond in accordance with applicable legal requirements. If additional information is needed to verify your identity or process the request, we will contact you.

How would you rate my reply?

Great Okay Not Good

--

Support

support@osf.io

On Fri, Jun 26, 2026 at 7:12 AM EDT, Artiom Kovnatsky <skovnats@gmail.com> wrote:

On Fri, Jun 26, 2026 at 6:35 AM EDT, Support Manager <support@osf.io> wrote:

Ok, you should be able to login now to [this account](#) with the gmail address.

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Support

support@osf.io

[Quoted text hidden]